

STATE OF NEW YORK

6903--B

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. BRONSON, R. CARROLL, HEVESI, RAGA, COLTON -- read once and referred to the Committee on Libraries and Education Technology -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to requiring public and not-for-profit libraries develop and implement programs to protect library employees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The labor law is amended by adding a new section 27-f to read as follows:

§ 27-f. Duty of libraries to implement programs to prevent workplace violence. 1. Definitions. For the purposes of this section:

(a) "Library" shall mean any public, association, or free library, as defined by section two hundred fifty-three of the education law, or library having tax exempt status under section 501 (c) (3) of the United States Internal Revenue Code, located in the city of New York or the state of New York.

(b) "Library employee" means an individual who is employed by a library.

(c) "Workplace" means any location away from a library employee's domicile, permanent or temporary, where a library employee performs any work-related duty in the course of such employee's employment by a library.

2. Written workplace violence prevention policy. The department shall create and publish a model library workplace violence prevention guidance document and library workplace violence prevention policy that employers may utilize in their adoption of a library workplace violence prevention policy required by this section. Such model library workplace

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD07317-06-5

1 violence prevention policy shall be publicly available and posted on the
2 website of the department.

3 (a) Such model library workplace violence prevention policy shall:

4 (i) outline a list of factors or situations in the workplace that
5 might place library employees at risk of workplace violence, including
6 but not limited to:

7 (1) working late night or early morning hours;

8 (2) exchanging money with the public;

9 (3) working alone or in small numbers; and

10 (4) uncontrolled access to the workplace; and

11 (ii) outline methods that the library will use to prevent incidents of
12 workplace violence at such workplace or workplaces, including but not
13 limited to the following:

14 (1) making high-risk areas more visible to more people;

15 (2) installing good external lighting;

16 (3) providing employee training; and

17 (4) establishing and implementing reporting systems for incidents of
18 workplace violence.

19 (b) Every library shall adopt the model library workplace violence
20 prevention policy promulgated pursuant to this subdivision, or establish
21 a workplace violence prevention policy that equals or exceeds the mini-
22 mum standards provided by such model library workplace violence
23 prevention policy. Such library workplace violence prevention policy
24 shall be provided to all employees in writing upon hire and annually
25 thereafter pursuant to paragraph (a) of subdivision four of this
26 section.

27 3. Library employee information and training. (a) The department, in
28 consultation with relevant groups as deemed necessary, shall produce a
29 model workplace violence prevention training program. Every library
30 shall utilize the model workplace violence prevention training program
31 pursuant to this subdivision or establish a workplace violence
32 prevention training program that equals or exceeds the minimum standards
33 provided by such model training program. The department's model training
34 program shall include, but not be limited to:

35 (i) information on the requirements of this section;

36 (ii) examples of measures library employees can use to protect them-
37 selves when faced with workplace violence from customers or other
38 coworkers;

39 (iii) de-escalation tactics, including those that can be used when
40 interacting with an individual experiencing a mental health crisis;

41 (iv) active shooter drills;

42 (v) emergency procedures; and

43 (vi) instruction on the use of security alarms, panic buttons, and
44 other related emergency devices.

45 (b) The department shall include information in such model workplace
46 violence prevention training program addressing conduct by supervisors
47 and any additional responsibilities for such supervisors, including ways
48 to address workplace specific emergency procedures, and training on
49 areas of previous security problems.

50 (c) As part of this training, every employer shall communicate to each
51 employee a site-specific list of emergency exits and meeting places in
52 case of emergency. Such workplace violence prevention training shall be
53 provided to all library employees upon hire and on an annual basis ther-
54 after.

55 4. Notice of policy. (a) Every library shall provide their library
56 employees, in writing in English and in the language identified by each

1 employee as the primary language of such employee, at the time of hiring
2 and at every annual workplace violence prevention training provided
3 pursuant to subdivision three of this section, a notice containing such
4 employer's library workplace violence prevention policy and the informa-
5 tion presented at such employer's workplace violence prevention training
6 program.

7 (b) The commissioner shall prepare templates of the model library
8 workplace violence prevention policy created and published pursuant to
9 subdivision two of this section and the model workplace violence
10 prevention training program produced pursuant to subdivision three of
11 this section. The commissioner shall determine, in their discretion,
12 which languages to provide in addition to English, based on the twelve
13 most common non-English languages spoken by limited-English proficient
14 individuals in the state, based on the data in the most recent American
15 Community Survey published by the United States Census Bureau and
16 published online by the New York state office of language access.

17 (c) When an employee identifies as their primary language a language
18 for which a template is not available from the commissioner, the employ-
19 er shall comply with this subdivision by providing that employee an
20 English-language notice.

21 (d) A library shall not be penalized for errors or omissions in the
22 non-English portions of any notice provided by the commissioner.

23 5. Panic buttons. Every library shall install panic buttons at easily
24 accessible locations throughout the workplace or workplaces. For the
25 purposes of this section, "panic button" shall mean a physical button
26 that when pressed immediately dispatches local law enforcement to the
27 workplace. Libraries that identify a better or more immediate option
28 that provides the same protection may obtain permission from the depart-
29 ment to implement such alternate measure or measures.

30 6. Rules and regulations. The commissioner may adopt rules and regu-
31 lations necessary to implement the provisions of this section.

32 7. Evaluation of policy. Beginning in the year two thousand twenty-
33 seven and every succeeding four years thereafter, the department shall
34 evaluate, using the criteria within this section, the impact of the
35 current model library workplace violence prevention guidance document
36 and library workplace violence prevention policy. Upon the completion of
37 each evaluation the department shall update the model library workplace
38 violence prevention guidance document and library workplace violence
39 prevention policy as needed.

40 8. The provisions of this section shall not diminish any other obli-
41 gation of a library otherwise provided under law, rule, or regulation,
42 or under a collective bargaining agreement.

43 § 2. This act shall take effect on the ninetieth day after it shall
44 have become a law. Effective immediately, the addition, amendment and/or
45 repeal of any rule or regulation necessary for the implementation of
46 this act on its effective date are authorized to be made and completed
47 on or before such effective date.